

# The Central Agricultural University Act, 1992

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Union of India - Act

The Central Agricultural University Act, 1992

UNION OF INDIA

India

The Central Agricultural University Act, 1992

Act 40 of 1992

Published on 26 December 1992

Commenced on 26 December 1992

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[Amended by THE CENTRAL AGRICULTURAL UNIVERSITY (AMENDMENT) ACT, 2016 (Act 45 of 2016) on 19 August 2016

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The Central Agricultural University Act, 1992

ACT NO. 40 OF 1992

1217.

Since the establishment of the first Agricultural University at Pantnagar in Uttar Pradesh, all the States except eight have established Agricultural Universities. Though each State was encouraged to set up an Agricultural University, the size and population of States in North Eastern Region do not warrant a separate Agricultural University for each State in that Region.

2. The manpower, requirement by 2000 AD for all North-Eastern States excluding Assam is estimated to be 500

agricultural graduates and 300 each in other areas of specialisation such as horticultural, forestry, animal production, veterinary science, fisheries, agricultural engineering and home science.

3. The Indian Council of Agricultural Research had appointed a Committee under the National Agricultural Research Project to study the agricultural situation in North-Eastern Region. Study disclosed that the said States had vast potential for agricultural development and, if tapped properly, could lead to increased agricultural production and productivity which will ultimately lead to prosperity and well being of the people.

4. Bonded on economic and population considerations, poor production and productivity in the Region, the Committee had recommended for establishment of a Central Agricultural University for that Region to be fully funded and technically support by the Indian Council of Agricultural Research.

5. With the establishment of the Central Agricultural University a long and cherished desire of the people in the region will be fulfilled for the furtherance of the advancement of learning and prosecution of the research in agriculture and allied sciences in that Region.

[26th December, 1992]

An Act to provide for the establishment and incorporation of a University for the North-Eastern region for the development of agriculture and for the furtherance of the advancement of learning and prosecution of research in agriculture and allied sciences in that region.

BE it enacted by Parliament in the Forty-third Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Central Agricultural University Act, 1992.

(2)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

Came into force w.e.f. 26-1-1993: Vide Notfin. NO. S.O. 72 (E), dated 25-1-1993.

2.

Definitions.

In this Act, and in all Statutes made hereunder, unless the context otherwise requires,--

(a)

"Academic Council" means the Academic Council of the University;

(b)

"academic staff" means such categories of staff as are designated as academic staff by the Ordinances;

(c)

"agriculture" means the basic and applied sciences of the soil and water management, crop production including production of all garden crops, control of plants, pests and diseases, horticulture including floriculture, animal husbandry including veterinary and dairy science, fisheries, forestry including farm forestry, homescience, agricultural engineering and technology, marketing and processing of agricultural and animal husbandry products, land use and management;

(d)

"Board" means the Board of Management of the University;

(e)

"Board of Studies" means the Board of Studies of the University;

(f)

"Chancellor" means the Chancellor of the University;

(g)

"college" means a constituent college of the University whether located at the headquarters, campus or elsewhere;

(h)

"Department" means a Department of Studies of the University;

(i)

"employee" means any person appointed by the University and includes teachers and other staff of the University;

(j)

"extension education" means the educational activities concerned with the training of orchardists, farmers and other groups serving agriculture, horticulture, fisheries and improved practices related thereto and the various phases of

scientific technology related to agriculture and agricultural production including post harvest technology and marketing;

(k)

"Faculty" means Faculty of the University;

(l)

"North-Eastern region" means the North-Eastern region of India comprising the States of Arunachal Pradesh, Manipur, Meghalaya, Mizoram, [Nagaland]

[Inserted by Act 45 of 2016.]

, Sikkim and Tripura;

(m)

"Ordinances" means the Ordinances of the University;

(n)

"Regulations" means the Regulations made by any authority of the University;

(o)

"Research Advisory Committee" means the Research Advisory Committee of the University;

(p)

"Statutes" means the Statutes of the University;

(q)

"student" means a person enrolled in the University for undergoing a course of studies for obtaining a degree, diploma or other academic distinction duly instituted;

(r)

"teachers" means Professors, Associate Professors, Assistant Professors, Teaching Faculty Members and their equivalent appointed for imparting instruction or conducting research or extension education programmes or combination of these in the University, college or any institute maintained by the University and designated as teachers by the Ordinances;

(s)

"University" means the Central Agricultural University established under this Act;

(t)

"Vice-Chancellor" means the Vice-Chancellor of the University;

(u)

"Visitor" means the Visitor of the University.

3.

The University.

(1)

There shall be established a University by the name of the "Central Agricultural University".

(2)

The headquarters of the University shall be at Imphal in the State of Manipur and it may also establish campuses at such other places within its jurisdiction as it may deem fit.

(3)

The first Chancellor and the first Vice-Chancellor and the first members of the Board, the Academic Council and all persons who may hereafter become such officers or members, so long as they continue to hold such office or membership are hereby constituted a body corporate by the name of the Central Agricultural University.

(4)

The University shall have perpetual succession and a common seal and shall sue and be sued by the said name.

4.

Objects of the University.

The objects of the University shall be--

(a)

to impart education in different branches of agricultural and allied sciences as it may deem fit;

(b)

to further the advancement of learning and prosecution of research in agriculture and allied sciences;

(c)

to undertake programmes of extension education in the States under its jurisdiction; and

(d)

to undertake such other activities as it may, from time to time, determine.

5.

Powers of the University.

The University shall have the following powers, namely:--

(i)

to make provision for instructions in agricultural and allied sciences;

(ii)

to make provision for conduct of research in agricultural and allied branches of learning;

(iii)

to make provision for dissemination of the findings of research and technical information through extension programmes;

(iv)

to grant, subject to such conditions as it may determine, diplomas or certificates to, and confer degrees or other academic distinctions on the basis of examination, evaluation or any other method of testing, on persons, and to withdraw any such diplomas, certificates, degrees or other academic distinction for good and sufficient cause;

(v)

to confer honorary degrees or other distinctions in the manner prescribed by the Statutes;

(vi)

to provide lectures and instructions for field workers, village leaders and other persons not enrolled as regular students of the University and to grant certificates to them as may be prescribed by the Statutes;

(vii)

to co-operate or collaborate or associate with any other University or authority or institution of higher learning in such manner and for such purposes as the University may determine;

(viii)

to establish and maintain colleges relating to agriculture, fisheries, dairying, veterinary medicine and animal science, homescience, agricultural engineering, forestry and allied sciences;

(ix)

to establish and maintain such campuses, special centres, specialised laboratories, libraries, museums or other units for research and instruction as are, in its opinion, necessary for the furtherance of its objects;

(x)

to create teaching, research and extension education posts and to make appointments thereto;

(xi)

to create administrative, ministerial and other posts and to make appointments thereto;

(xii)

to institute and award fellowships, scholarships, studentships, medals and prizes;

(xiii)

to determine standards of admission to the University, which may include examination, evaluation or any other method of testing;

(xiv)

to provide and maintain residential accommodation for students and employees;

(xv)

to supervise the residences of the students of the University and to make arrangements for promoting their health and general welfare;

(xvi)

to lay down conditions of service of all categories of employees, including their code of conduct;

(xvii)

to regulate and enforce discipline among the students and the employees, and to take such disciplinary measures in this regard as it may deem necessary;

(xviii)

to fix, demand and receive such fees and other charges as may be prescribed by the Statutes;

(xix)

to borrow, with the approval of the Central Government on the security of its property, money for the purpose of the University;

(xx)

to receive benefactions, donations and gifts and to acquire, hold, manage and dispose of any property, movable or immovable, including trust and endowment properties for its purposes;

(xxi)

to do all such other acts and things as may be necessary, incidental or conducive to the attainment of all or any of its objects.

6.

Jurisdiction.

(1)

The jurisdiction and responsibility of the University with respect to teaching, research and programmes of extension education at the University level, in the field of agricultural shall extend to the States of Arunachal Pradesh, Manipur, Meghalaya, Mizoram, [Nagaland]

[Inserted by Act 45 of 2016.]

, Sikkim and Tripura.

(2)

All colleges, research and experimental stations or other institutions coming under the jurisdiction and authority of the University shall be its constituent units under the full management and control of its officers and authorities and no such units shall be recognised as affiliated units.

(3)

The University may assume responsibility for the training of field extension workers and others and may develop such training centres as may be required in various parts of the States under its jurisdiction.

7.

University open to all classes, castes and creed.

The University shall be open to persons of either sex and of whatever caste, creed, race or class, and it shall not be lawful for the University to adopt or impose on any person, any test whatsoever of religious belief or profession in order to entitle him to be appointed as a teacher of the University or to hold any other office therein or be admitted as a student in the University or to graduate thereat or to enjoy or exercise any privilege thereof:

Provided that nothing in this section shall be deemed to prevent the University from making special provisions for the employment or admission of women, handicapped or of persons belonging to the weaker sections of the society and, in particular, of the Scheduled Castes and the Scheduled Tribes. 287

8.

The Visitor.

(1)

The President of India shall be the Visitor of the University.

(2)

Subject to the provisions of sub-sections (3) and (4), the Visitor shall have the right to cause an inspection to be made, by such person or persons as he may direct, of the University, its buildings, laboratories, libraries, museums, workshops and equipments, and of any institution or college and also of the examination, instruction and other work conducted or done by the University, and to cause an inquiry to be made in like manner in respect of any matter connected with the administration and finances of the University.

(3)

The Visitor shall, in every case, give notice to the University of his intention to cause an inspection or inquiry to be made and the University shall, on receipt of such notice, have the right to make, within thirty days from the date of receipt of the notice or such other period as the Visitor may determine, such representations to him as it may consider necessary.

(4)

After considering the representations, if any, made by the University, the Visitor may cause to be made such inspection or inquiry as is referred to in sub-section (2).

(5)

Where an inspection or inquiry has been caused to be made by the Visitor, the University shall be entitled to appoint a representative who shall have the right to appear in person and to be heard on such inspection or inquiry.

(6)

The Visitor may address the Vice-Chancellor with reference to the results of such inspection or inquiry together with such views and advice with regard to the action to be taken thereon as the Visitor may be pleased to offer and on receipt of the address made by the Visitor, the Vice-Chancellor shall communicate forthwith to the Board the results of the inspection or inquiry and the views of the Visitor and the advice tendered by him upon the action to be taken thereon.

(7)

The Board shall communicate through the Vice-Chancellor to the Visitor such action, if any, as it proposes to take or has been taken by it upon the results of such inspection or inquiry.

(8)

Where the Board does not, within a reasonable time, take action to the satisfaction of the Visitor, the Visitor may, after considering any explanation furnished or representation made by the Board, issue such directions as he may think fit and the Board shall be bound to comply with such directions.

(9)

Without prejudice to the foregoing provisions of this section, the Visitor may, by an order in writing, annul any proceeding of the University which is not in conformity with this Act, the Statutes or the Ordinances:

Provided that before making any such order, he shall call upon the University to show cause why such an order should not be made and, if any cause is shown within a reasonable time, he shall consider the same.

(10)

The Visitor shall have such other powers as may be specified by the Statutes. 288

9.

Officers of the University.

The following shall be the officers of the University, namely:--

(1)

the Chancellor;

(2)

the Vice-Chancellor;

(3)

Deans;

(4)

Directors;

(5)

the Registrar;

(6)

the Comptroller; and

(7)

such other officers as may be prescribed by the Statutes.

10.

The Chancellor.

(1)

The Chancellor shall be appointed by the Visitor in such manner as may be prescribed by the Statutes.

(2)

The Chancellor shall, by virtue of his office, be the Head of the University.

(3)

The Chancellor shall, if present, preside at the convocations of the University held for conferring degrees.

11.

The Vice-Chancellor.

(1)

The Vice-Chancellor shall be appointed by the Visitor in such manner as may be prescribed by the Statutes.

(2)

The Vice-Chancellor shall be the principal executive and academic officer of the University and shall exercise general supervision and control over the affairs of the University and give effect to the decisions of all the authorities of the University.

(3)

The Vice-Chancellor may, if he is of opinion that immediate action is necessary on any matter, exercise any power conferred on any authority of the University by or under this Act and shall report to such authority the action taken by him on such matter:

Provided that if the authority concerned is of opinion that such action ought not to have been taken, it may refer the matter to the Visitor whose decision thereon shall be final:

Provided further that any person in the service of the University who is aggrieved by the action taken by the Vice-Chancellor under this sub-section shall have the right to appeal against such action to the Board within three months from the date on which decision on such action is communicated to him and thereupon the Board may confirm, modify or reverse the action taken by the Vice-Chancellor.

(4)

The Vice-Chancellor, if he is of opinion that any decision of any authority of the University is beyond the powers of the authority conferred by the provisions of this Act, the Statutes or the Ordinances or that any decision taken is not in the interest of the University, may ask the authority concerned to review its decision within sixty days of such decision and if the authority refuses to review the decision either in whole or in part or no decision is taken by it within the said period of sixty days, the matter shall be referred to the Visitor whose decision thereon shall be final.

(5)

The Vice-Chancellor shall exercise such other powers and perform such other duties as may be prescribed by the Statutes or the Ordinances. 289

12.

Deans and Directors.

Every Dean and every Director shall be appointed in such manner and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

13.

The Registrar.

(1)

The Registrar shall be appointed in such manner as may be prescribed by the Statutes.

(2)

The Registrar shall have the power to enter into agreements, sign documents and authenticate records on behalf of the University and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

14.

The Comptroller.

The Comptroller shall be appointed in such manner and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

15.

Other officers.

The manner of appointment and powers and duties of the other officers of the University shall be prescribed by the Statutes.

16.

Authorities of the University.

The following shall be the authorities of the University, namely:--

(1)

the Board;

(2)

the Academic Council;

(3)

the Finance Committee;

(4)

the Research Programme Committee;

(5)

the Extension Education Advisory Committee;

(6)

the Board of Studies; and

(7)

such other authorities as may be prescribed by the Statutes.

17.

The Board.

(1)

The Board shall be the principal executive body of the University.

(2)

The constitution of the Board, the term of office of its members and its powers and functions shall be prescribed by the Statutes.

18.

The Academic Council.

(1)

The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act, the Statutes and Ordinances, have the control and general regulation of, and be responsible for, the maintenance of standards of learning, education, instruction, evaluation and examination within the University and shall exercise such other powers and perform such other functions as may be conferred or imposed upon it by the Statutes.

(2)

The constitution of the Academic Council and the term of office of its members shall be prescribed by the Statutes.

19.

The Finance Committee.

The constitution, powers and functions of the Finance Committee shall be prescribed by the Statutes.

20.

The Research Programme Committee.

The constitution, powers and functions of the Research Programme Committee shall be prescribed by the Statutes. 290

21.

The Extension Education Advisory Committee.

The constitution, powers and functions of the Extension Education Advisory Committee shall be prescribed by the Statutes.

22.

The Board of Studies.

The constitution, powers and functions of the Board of Studies shall be prescribed by the Statutes.

23.

Faculties.

The University shall have such Faculties as may be prescribed by the Statutes.

24.

Other authorities.

The constitution, powers and functions of other authorities of the University referred to in clause (7) of section 16 shall be such as may be prescribed by the Statutes.

25.

Power to make Statutes.

Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:--

(a)

the constitution, powers and functions of the authorities of the University, as may be constituted from time to time;

(b)

the appointment and continuance in office of the members of the said authorities, the filling up of vacancies of members, and all other matters relating to those authorities for which it may be necessary or desirable to provide;



- (c)  
the appointment, powers and duties of the officers of the University and their emoluments;
- (d)  
the appointment of teachers, academic staff and other employees of the University and their emoluments;
- (e)  
the appointment of teachers and academic staff working in any other University or organisation for a specific period for undertaking a joint project;
- (f)  
the conditions of service of employees including provision for pension, insurance and provident fund, the manner of termination of service and disciplinary action;
- (g)  
the principles governing the seniority of service of the employees of the University;
- (h)  
the procedure for arbitration in cases of dispute between employees or students and the University;
- (i)  
the procedure for appeal to the Board by any employee or student against the action of any officer or authority of the University;
- (j)  
the establishment and abolition of Departments, Centres, colleges and institutions;
- (k)  
the conferment of honorary degrees;
- (l)  
the withdrawal of degrees, diplomas, certificates and other academic distinctions;
- (m)  
the institution of fellowships, scholarships, studentships, medals and prizes;
- (n)  
the delegation of powers vested in the authorities or officers of the University;
- (o)  
the maintenance of discipline among the employees and students;
- (p)  
all other matters which by this Act are to be, or may be, prescribed by the Statutes.

26.

Statutes how to be made.

(1)

The first Statutes are those set out in the Schedule.

(2)

The Board may from time to time make Statutes or may amend or repeal the Statutes referred to in sub-section (1):

Provided that the Board shall not make, amend or repeal any Statute affecting the status, powers or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on the proposed changes, and any opinion so expressed shall be considered by the Board.

(3)

Every Statute or any amendment or repeal of a Statute shall require the assent of the Visitor who may assent thereto or withhold assent therefrom or remit it to the Board for consideration.

(4)

A Statute or a Statute amending or repealing an existing Statute shall have no validity unless it has been assented to by the Visitor.

(5)

Notwithstanding anything contained in the foregoing sub-sections, the Visitor may amend or repeal the Statutes referred to in sub-section (1), during the period of three years immediately after the commencement of this Act.

(6)

Notwithstanding anything contained in the foregoing sub-sections, the Visitor may direct the University to make

provisions in the Statutes in respect of any matter specified by him and if the Board is unable to implement such direction within sixty days of its receipt, the Visitor may, after considering the reasons, if any, communicated by the Board for its inability to comply with such direction, make or amend the Statutes suitably.

27.

Power to make Ordinances.

(1)

Subject to the provisions of this Act and the Statutes, the Ordinances may provide for all or any of the following matters, namely:--

(a)

the admission of students to the University and their enrolment as such;

(b)

the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(c)

the medium of instruction and examination;

(d)

the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(e)

the fees to be charged for courses of study in the University and for admission to the examinations, degrees, diplomas and certificates of the University;

(f)

the conditions for award of fellowships, scholarships, studentships, medals and prizes;

(g)

the conduct of examinations, including the term of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(h)

the conditions of residence of the students;

(i)

the special arrangements, if any, which may be made for the residence, discipline and teaching of women students and the prescribing of special courses of studies for them;

(j)

the appointment and emoluments of employees other than those for whom provision has been made in the Statutes;

(k)

the establishment of special centres, specialized laboratories and other committees;

(l)

the manner of co-operation and collaboration with other Universities and authorities including learned bodies or associations;

(m)

the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;

(n)

such other terms and conditions of service of teachers and other academic staff as are not prescribed by the Statutes;

(o)

the management of colleges and institutions established by the University;

(p)

the setting up of a machinery for redressal of grievances of employees; and

(q)

all other matters which by this Act or the Statutes may be provided for by the Ordinances.

(2)

The first Ordinances shall be made by the Vice-Chancellor with the previous approval of the Central Government and the Ordinances so made may be amended or repealed at any time by the Board in the manner prescribed by the

Statutes.

28.

Regulations.

The authorities of the University may make Regulations, consistent with this Act, the Statutes and the Ordinances for the conduct of their own business and that of the committees appointed by them and not provided for by this Act, the Statutes or the Ordinances in the manner prescribed by the Statutes.

29.

Annual report.

(1)

The annual report of the University shall be prepared under the direction of the Board, which shall include, among other matters, the steps taken by the University towards the fulfilment of its objects and shall be submitted to the Board on or after such date as may be prescribed by the Statutes and the Board shall consider the report in its annual meeting.

(2)

The Board shall submit the annual report to the Visitor along with its comments, if any.

(3)

A copy of the annual report as prepared under sub-section (1), shall also be submitted to the Central Government, which shall, as soon as may be, cause the same to be laid before both Houses of Parliament.

30.

Annual accounts.

(1)

The annual accounts of the University shall be prepared under the directions of the Board and shall, once at least every year and at intervals of not more than fifteen months, be audited by the Comptroller and Auditor-General of India or by such persons as he may authorise in this behalf.

(2)

A copy of the annual accounts together with the audit report thereon shall be submitted to the Board and the Visitor along with the observations of the Board.

(3)

Any observations made by the Visitor on the annual accounts shall be brought to the notice of the Board and the observations of the Board, if any, shall be submitted to the Visitor.

(4)

A copy of the annual accounts together with the audit report as submitted to the Visitor, shall also be submitted to the Central Government, which shall, as soon as may be, cause the same to be laid before both Houses of Parliament.

(5)

The audited annual accounts after having been laid before both Houses of Parliament shall be published in the Official Gazette.

31.

Conditions of service of employees.

(1)

Every employee of the University shall be appointed under a written contract, which shall be lodged with the University and a copy of which shall be furnished to the employee concerned.

(2)

Any dispute arising out of the contract between the University and any employee shall, at the request of the employee, be referred to a Tribunal of Arbitration consisting of one member appointed by the Board, one member nominated by the employee concerned and an umpire appointed by the Visitor.

(3)

The decision of the Tribunal shall be final, and no suit shall lie in any civil court in respect of the matters decided by the Tribunal.

(4)

Every request made by the employee under sub-section (2) shall be deemed to be a submission to arbitration upon the terms of this section within the meaning of the Arbitration Act, 1940 (2 of 1940).

(5)

The procedure for regulating the work of the Tribunal shall be prescribed by the Statutes.

32.

Procedure of appeal and arbitration in disciplinary cases against students.

(1)

Any student or candidate for an examination whose name has been removed from the rolls of the University by the orders or resolution of the Vice-Chancellor, Discipline Committee or Examination Committee, as the case may be, and who has been debarred from appearing at the examinations of the University for more than one year, may, within ten days of the date of receipt of such orders or copy of such resolution by him, appeal to the Board and the Board may confirm, modify or reverse the decision of the Vice-Chancellor or the Committee, as the case may be.

(2)

Any dispute arising out of any disciplinary action taken by the University against a student shall, at the request of such student, be referred to a Tribunal of Arbitration and the provisions of sub-sections (2), (3), (4) and (5) of section 31 shall, as far as may be, apply to a reference made under this sub-section. 294

33.

Right to appeal.

Every employee or student of the University or of a college or institution maintained by the University shall, notwithstanding anything contained in this Act, have a right to appeal, within such time as may be prescribed by the Statutes, to the Board against the decision of any officer or authority of the University or any college or an institution, as the case may be, and thereupon the Board may confirm, modify or reverse the decision appealed against.

34.

Provident and pension funds.

(1)

The University shall constitute for the benefit of its employees such provident or pension fund or provide such insurance schemes as it may deem fit in such manner and subject to such conditions as may be prescribed by the Statutes.

(2)

Where such provident fund or pension fund has been so constituted, the Central Government may declare that the provision of the Provident Funds Act, 1925 (

19 of 1925

), shall apply to such fund, as if it were a Government provident fund.

35.

Disputes as to constitution of University authorities.

If any question arises as to whether any person has been duly appointed as, or is entitled to be, a member of any authority of the University, the matter shall be referred to the Visitor whose decision thereon shall be final.

36.

Constitution of Committees.

Where any authority of the University is given power by this Act or the Statutes to appoint Committees, such Committees shall, save as otherwise provided, consist of the members of the authority concerned and of such other person, if any, as the authority in each case may think fit.

37.

Filling of casual vacancies.

All casual vacancies among the members (other than ex officio members) of any authority of the University shall be filled, as soon as may be, by the person who appointed or co-opted the member whose place has become vacant and person appointed or co-opted to a casual vacancy shall be a member of such authority or body for the residue of the term for which the person whose place he fills would have been a member.

38.

Proceedings of University authorities not invalidated by vacancy.

No act or proceedings of any authority of the University shall be invalid merely by reason of the existence of a vacancy or vacancies among its members.

39.

Protection of action taken in good faith.

No suit, prosecution or other legal proceedings shall lie against the Board, any authority or officer or other employee of

the University for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act, the Statutes or the Ordinances. 295

40.

Mode of proof of University records.

A copy of any receipt, application, notice, order, proceeding, resolution of any authority or Committee of the University, or other documents in possession of the University, or any entry in any register duly maintained by the University, if verified by the Registrar, shall be received as prima facie evidence of such receipt, application, notice, order, proceeding, resolution or documents or the existence of entry in the register and shall be admitted as evidence of the matters and transactions therein where the original thereof would, if produced, have been admissible in evidence, notwithstanding anything contained in the Indian Evidence Act, 1872 (

1 of 1872

.) or in any other law for the time being in force.

41.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of three years from the commencement of this Act.

(2)

Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

42.

Transitional provisions.

Notwithstanding anything contained in this Act and the Statutes,--

(a)

the first Chancellor and the first Vice-Chancellor shall be appointed by the Visitor and shall hold office for a term of five years;

(b)

the first Registrar and the first Comptroller shall be appointed by the Visitor and each of the said officers shall hold office for a term of three years;

(c)

the first members of the Board shall be nominated by the Visitor and shall hold office for a term of three years;

(d)

the first members of the Academic Council shall be nominated by the Visitor and shall hold office for a term of three years:

Provided that if any vacancy occurs in the above offices or authorities, the same shall be filled by appointment or nomination, as the case may be, by the Visitor, and the person so appointed or nominated shall hold office for so long as the officer or member in whose place he is appointed or nominated would have held office, if such vacancy had not occurred.

43.

Statutes, Ordinances and Regulations to be published in the Official Gazette and to be laid before Parliament.

(1)

Every Statute, Ordinance or Regulation made under this Act shall be published in the Official Gazette.

(2)

Every Statute, Ordinance or Regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute, Ordinance or Regulation or both Houses agree that the Statute, Ordinance or Regulation should not be made, the Statute, Ordinance or Regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such

modification or annulment shall be without prejudice to the validity of anything previously done under that Statute, Ordinance or Regulation.

(3)

The power to make Statutes, Ordinances or Regulations shall include the power to give retrospective effect from a date not earlier than the date of commencement of this Act, to the Statutes, Ordinances or Regulations or any of them but no retrospective effect shall be given to any Statute, Ordinance or Regulation so as to prejudicially affect the interests of any person to whom such Statutes, Ordinances or Regulations may be applicable.

#### THE SCHEDULE

(See section 26)

#### THE STATUTES OF THE UNIVERSITY

1. The Chancellor. (1) The Chancellor shall be appointed by the Visitor from a panel of not less than three persons recommended by the Board from amongst persons of eminence in education in general and agricultural sciences in particular:

Provided that if the Visitor does not approve of any of the persons so recommended he may call for fresh recommendations from the Board.

(2)

The Chancellor shall hold office for a term of five years and shall not be eligible for reappointment:

Provided that notwithstanding the expiry of his term of office, the Chancellor shall continue to hold office until his successor enters upon his office.

2. The Vice-Chancellor (1) The Vice-Chancellor shall be appointed by the Visitor from a panel of not less than three persons who shall be recommended by a Committee as constituted under clause (2):

Provided that if the Visitor does not approve of any of the persons included in the panel, he may call for a fresh panel.

(2)

The Committee referred to in clause (1), shall consist of a nominee of the Visitor, the Director-General of the Indian Council of Agricultural Research and the Secretary to the North-Eastern Council, set-up under section 3 of the North-Eastern Council Act, 1971 (84 of 1971) and the nominee of the Visitor shall be the convener of the Committee.

(3)

The Vice-Chancellor shall be a whole-time salaried officer of the University.

(4)

The Vice-Chancellor shall hold office for a term of five years from the date on which he enters upon his office, or until he attains the age of sixty-five years, whichever is earlier, and he shall not be eligible for reappointment:

Provided that notwithstanding the expiry of the said period of five years, he shall continue in office until his successor is appointed and enters upon his office:

Provided further that the Visitor may direct any Vice-Chancellor after his term has expired, to continue in office for such period, not exceeding a total period of one year, as may be specified by him.

(5)

The emoluments and other conditions of service of the Vice-Chancellor shall be as follows:-

(i)

The Vice-Chancellor shall be paid a monthly salary and allowances other than the house rent allowance, at the rates fixed by the Central Government from time to time and he shall be entitled, without payment of rent, to use a furnished residence throughout his term of office and no charge shall fall on the Vice-Chancellor in respect of the maintenance of such residence.

(ii)

The Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Board with the approval of the Visitor from time to time:

Provided that where an employee of the University or a college or an institution maintained by it, or of any other University or any Institution maintained by or affiliated to such other University, is appointed as the Vice-Chancellor, he may be allowed to continue to contribute to any provident fund of which he is a member and the University shall contribute to the account of such person in that provident fund at the same rate at which the person had been contributing immediately before his appointment as the Vice-Chancellor:

Provided further that where such employee had been a member of any pension scheme, the University shall make the

necessary contribution to such scheme.

(iii)

The Vice-Chancellor shall be entitled to travelling allowance at such rates as may be fixed by the Board.

(iv)

The Vice-Chancellor shall be entitled to leave on full pay at the rate of thirty days in a calendar year and the leave shall be credited to his account in advance in two half-yearly instalments of fifteen days each on the 1st day of January and July every year;

Provided that if the Vice-Chancellor assumes or relinquishes charge of the office of the Vice-Chancellor during the currency of a half year, the leave shall be credited proportionately at the rate of two and-a-half days for each completed month of service.

(v)

In addition to the leave referred to in sub-clause (iv), the Vice-Chancellor shall also be entitled to half pay leave at the rate of twenty days for each completed year of service. This half pay leave may also be availed of as commuted leave on full pay on medical certificate. When commuted leave is availed, twice the amount of half pay leave shall be debited against half pay leave due.

(6)

If the office of the Vice-Chancellor becomes vacant due to death, resignation or otherwise, or if he is unable to perform his duties due to ill-health or any other cause, the senior-most Dean or Director, as the case may be, shall perform the duties of the Vice-Chancellor until a new Vice-Chancellor assumes office or until the Vice-Chancellor attends to the duties of his office, as the case may be.

3. Powers and duties of the Vice-Chancellor. (1) The Vice-Chancellor shall be ex officio Chairman of the Board, the Academic Council and the Finance Committee and shall, in the absence of the Chancellor, preside at the convocations held for conferring degrees.

(2)

The Vice-Chancellor shall be entitled to be present at, and address, any meeting of any authority of the University, but shall not be entitled to vote thereat unless he is a member of such authority.

(3)

It shall be the duty of the Vice-Chancellor to see that this Act, the Statutes, the Ordinances and the Regulations are duly observed, and he shall have all the powers necessary to ensure such observance.

(4)

The Vice-Chancellor shall exercise control over the affairs of the University and shall give effect to the decisions of all the authorities of the University.

(5)

The Vice-Chancellor shall have all the powers necessary for the proper maintenance of discipline in the University and he may delegate any such powers to such person or persons as he may deem fit.

(6)

The Vice-Chancellor shall have the power to convene or cause to be convened the meetings of the Board, the Academic Council and the Finance Committee.

4. Deans of colleges. (1) Every Dean of a college shall be appointed by the Vice-Chancellor from among the Professors in the college for a period of five years and he shall be eligible for reappointment:

Provided that a Dean on attaining the age of sixty years shall cease to hold office as such:

Provided further that if at any time there is no Professor in a college, the Vice-Chancellor, or a Dean authorised by the Vice-Chancellor in this behalf, shall exercise the powers of the Dean of the college.

(2)

When the office of the Dean is vacant or when the Dean is, by reason of illness, absence or any other cause, unable to perform duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(3)

The Dean shall be the Head of the college and shall be responsible for the conduct and maintenance of the standards of teaching and research in the college and shall have such other functions as may be prescribed by the Ordinances.

(4)

The Dean shall have the right to be present and to speak at any meeting of the Board of Studies or Committees of the college, as the case may be, but shall not have the right to vote thereat unless he is a member thereof.

5. Director Instruction. (1) The Director Instruction shall be appointed by the Board on the recommendation of a Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(2)

The Director Instruction shall hold office for a term of five years and shall be eligible for reappointment:

Provided that the Director Instruction on attaining the age of sixty years shall cease to hold office as such.

(3)

The Director Instruction shall be responsible for planning coordination and supervision for all educational programmes in the various faculties of the University.

6. The Director of Research. (1) The Director of Research shall be appointed by the Board on the recommendation of a Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(2)

The Director of Research shall hold office for a term of five years and shall be eligible for reappointment:

Provided that the Director of Research on attaining the age of sixty years shall cease to hold office as such.

(3)

The Director of Research shall be responsible for the supervision and coordination of research programmes in the University.

7. The Director of Extension Education. (1) The Director of Extension Education shall be appointed by the Board on the recommendation of a Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(2)

The Director of Extension Education shall hold office for a term of five years and shall be eligible for reappointment:

Provided that the Director of Extension Education on attaining the age of sixty years shall cease to hold office as such.

(3)

The Director of Extension Education shall be responsible for the supervision and coordination of all Extension Education Programmes of the University.

8. Registrar. (1) The Registrar shall be appointed by the Board on the recommendation of a Selection Committee constituted for the purpose and shall be a whole-time salaried officer of the University.

(2)

He shall be appointed for a term of five years and shall be eligible for reappointment.

(3)

The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed by the Ordinances:

Provided that the Registrar shall retire on attaining the age of sixty years:

Provided further that a Registrar shall, notwithstanding his attaining the age of sixty years, continue in office until his successor is appointed and enters upon his office or until the expiry of a period of one year, whichever is earlier.

(4)

When the office of the Registrar is vacant or when the Registrar is, by reason of illness, absence, or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(5)

(a)

The Registrar shall have power to take disciplinary action against such of the employees, excluding teachers, as may be specified in the order of the Board and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or the withholding of increment:

Provided that no such penalty shall be imposed unless the person concerned has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in sub-clause (a).



(c)

In a case where the inquiry discloses that a punishment beyond the power of the Registrar is called for, the Registrar shall, upon conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendations:

Provided that an appeal shall lie to the Board against an order of the Vice-Chancellor imposing any penalty.

(6)

The Registrar shall be ex officio Secretary of the Board and the Academic Council, but shall not be deemed to be a member of any of these authorities.

(7)

It shall be the duty of the Registrar--

(a)

to be the custodian of the records, the common seal and such other property of the University as the Board shall commit to his charge;

(b)

to issue all notices convening meetings of the Board, the Academic Council and of any Committees appointed by those authorities;

(c)

to keep the minutes of all the meetings of the Board, the Academic Council and of any Committees appointed by those authorities;

(d)

to conduct the official correspondence of the Board and the Academic Council;

(e)

to arrange for and superintend the examinations of the University in accordance with the manner prescribed by the Ordinances;

(f)

to supply to the Visitor, copies of the agenda of the meetings of the authorities of the University as soon as they are issued; and the minutes of such meetings;

(g)

to represent the University in suits or proceedings by or against the University, sign powers-of-attorney and verify pleadings or depute his representatives for the purpose; and

(h)

to perform such other duties as may be specified in the Statutes, the Ordinances or the Regulations or as may be required from time to time, by the Board or the Vice-Chancellor.

9. The Comptroller. (1) The Comptroller shall be appointed by the Board on the recommendation of a Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(2)

He shall be appointed for a term of five years and shall be eligible for reappointment.

(3)

The emoluments and other terms and conditions of service of the Comptroller shall be such as may be prescribed by the Ordinances:

Provided that a Comptroller shall retire on attaining the age of sixty years:

Provided further that the Comptroller shall, notwithstanding his attaining the age of sixty years, continue in office until his successor is appointed and enter upon his office or until the expiry of a period of one year, whichever is earlier.

(4)

When the office of the Comptroller is vacant or when the Comptroller is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(5)

The Comptroller shall be ex officio Secretary of the Finance Committee, but shall not be deemed to be a member of such Committee.

(6)

The Comptroller shall--

- (a)  
exercise general supervision over the funds of the University and shall advise it as regards its financial policy; and
- (b)  
perform such other financial functions as may be assigned to him by the Board or as may be prescribed by the Statutes or the Ordinances.
- (7)  
Subject to the control of the Board, the Comptroller shall--
- (a)  
hold and manage the property and investments of the University including trust and endowed property;
- (b)  
ensure that the limits fixed by the Board for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended on the purpose for which they are granted or allotted;
- (c)  
be responsible for the preparation of annual accounts and the budget of the University and for their presentation to the Board;
- (d)  
keep a constant watch on the state of the cash and bank balances and on the state of investments;
- (e)  
watch the progress of the collection of revenue and advise on the methods of collection employed;
- (f)  
ensure that the registers of buildings, land, furniture and equipment are maintained up-to-date and that stock-checking is conducted, of equipment and other consumable materials in all offices, Specialised Laboratories, Colleges and Institutions maintained by the University;
- (g)  
bring to the notice of the Vice-Chancellor unauthorised expenditure and other financial irregularities and suggest disciplinary action against persons at fault; and
- (h)  
call for from any office, Laboratory, College or Institution maintained by the University any information or returns that he may consider necessary for the performance of his duties.
- (8)  
Any receipt given by the Comptroller or the person or persons duly authorised in this behalf by the Board for any money payable to the University shall be sufficient discharge for payment of such money.
10. Heads of Departments. (1) Each Department shall have a Head who shall be not below the rank of an Associate Professor and whose duties and functions and terms and conditions of appointment shall be prescribed by the Ordinances:
- Provided that if there is more than one Professor in any Department, the Head of the Department shall be appointed by the Board on the recommendation of the Vice-Chancellor from among the Professors:
- Provided further that in the case of Departments where there is only one Professor, the Board shall have the option to appoint, on the recommendation of the Vice-Chancellor, either the Professor or an Associate Professor as the Head of the Department:
- Provided also that in a Department where there is no Professor, an Associate Professor may be appointed as the Head of the Department by the Board on the recommendation of the Vice-Chancellor:
- Provided also that if there is no Professor or Reader, in a Department, the Dean of College concerned shall act as the Head of the Department.
- (2)  
It shall be open to a Professor or an Associate Professor to decline the offer of appointment as the Head of the Department.
- (3)  
A Professor or an Associate Professor appointed as the Head of the Department shall hold office as such for a period of three years and shall be eligible for reappointment.
- (4)

A Head of a Department may resign his office at any time during his tenure of office.

(5)

A Head of a Department shall perform such functions as may be prescribed by the Ordinances.

11. Librarians. (1) Every Librarian shall be appointed by the Board on the recommendation of the Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(2)

Every Librarian shall exercise such powers and perform such duties as may be assigned to him by the Board.

12. Constitution, powers and functions of the Board.. (1) The Board shall consist of the following members, namely:--

(i)

the Vice-Chancellor, ex officio Chairman;

(ii)

two secretaries from amongst the secretaries in charge of the Departments of Agriculture and Forests of a State in the North-Eastern region to be nominated by the Visitor by rotation in the alphabetical order to represent that State;

(iii)

two eminent scientists to be nominated by the Visitor;

(iv)

two distinguished persons representing Agro-based industries to be nominated by the Visitor;

(v)

the Deputy Director-General (Education) representing the Indian Council of Agricultural Research;

(vi)

the Secretary to the North-Eastern Council set up under section 3 of the North-Eastern Council Act, 1971 (84 of 1971);

(vii)

one Dean of college and one Director to be nominated by the Vice-Chancellor on rotational basis;

(viii)

two persons representing farmers in the States of the North-Eastern region to be nominated by the Vice-Chancellor by rotation in the alphabetical order of those States;

(ix)

an industrialist or a manufacturer having special knowledge in agricultural development to be nominated by the Visitor;

(x)

one woman social worker representing women social organisation in the North-Eastern region;

(xi)

an Advisor (Agriculture), Planning Commission;

(xii)

a distinguished authority on forestry, social forestry or environment management to be nominated by the Visitor;

(xiii)

three persons not below the rank of Joint Secretary representing respectively the Departments of the Central Government dealing with Agriculture, Animal Husbandry and Forestry; and

(xiv)

the Registrar of the University, Secretary.

(2)

The term of office of the members of the Board, other than ex officio members, shall be two years.

(3)

The Board shall have the power of management and administration of the revenue and property of the University and the conduct of all administrative affairs of the University not otherwise provided for.

(4)

Subject to the provisions of this Act, the Statutes and the Ordinances, the Board shall, in addition to all other powers vested in it, have the following powers, namely:--

(i)

to create teaching and academic posts, to determine the number and emoluments of such posts and to define the duties and conditions of service of teachers and other academic staff and Deans of colleges, Directors and heads of other institutions maintained by the University;

(ii)

to appoint such teachers and other academic staff, as may be necessary, and Deans of colleges, Directors and heads of other institutions maintained by the University on the recommendation of the Selection Committee constituted for the purpose and to fill up temporary vacancies therein;

(iii)

to create administrative, ministerial and other necessary posts and to make appointments thereto in the manner prescribed by the Ordinances;

(iv)

to grant leave of absence to any officer of the University other than the Chancellor and the Vice-Chancellor, and to make necessary arrangements for the discharge of the functions of such officer during his absence;

(v)

to regulate and enforce discipline among employees in accordance with the Statutes and the Ordinances;

(vi)

to manage and regulate the finances, accounts, investments, property, business and all other administrative affairs of the University, and for that purpose to appoint such agents as it may think fit;

(vii)

to fix limits on the total recurring and the total nonrecurring expenditure for a year on the recommendations of the Finance Committee;

(viii)

to invest any money belonging to the University, including any unapplied income, in such stocks, funds, shares or securities, from time to time, as it may think fit or in the purchase of immovable property in India, with the like powers of varying such investment from time to time;

(ix)

to transfer or accept transfers of any movable or immovable property on behalf of the University;

(x)

to provide buildings, premises, furniture and apparatus and other means needed for carrying on the work of the University;

(xi)

to enter into, vary, carry out and cancel contracts on behalf of the University;

(xii)

to entertain, adjudicate upon, and, if thought fit, to redress any grievances of the employees and students of the University;

(xiii)

to appoint examiners and moderators and, if necessary, to remove them, and to fix their fees, emoluments and travelling and other allowances, after consulting the Academic Council;

(xiv)

to select a common seal for the University and provide for the custody and use of such seal;

(xv)

to make such special arrangements as may be necessary for the residence and discipline of women students;

(xvi)

to delegate any of its powers to the Vice-Chancellor, the Deans, Directors, the Registrar or the Comptroller or such other employee or authority of the University or to a committee appointed by it as it may deem fit;

(xvii)

to institute fellowships, scholarships, studentships, medals and prizes;

(xviii)

to provide for the appointment of Visiting Professors, Emeritus Professors, Consultants and Scholars and determine the terms and conditions of such appointment; and

(xix)

to exercise such other powers and perform such other duties as may be conferred or imposed on it by the Act, or the Statutes.

13. Quorum for meetings of the Board. Seven members of the Board shall form a quorum for a meeting of the Board.

14. Constitution and powers of the Academic Council. (1) The Academic Council shall consist of the following members, namely:--

- (i)  
the Vice-Chancellor, ex officio Member;
- (ii)  
all the Deans of the colleges of the University;
- (iii)  
the Director of Research of the University;
- (iv)  
the Director of Extension Education of the University;
- (v)  
the Director Instruction;
- (vi)  
a Librarian to be nominated by the Vice-Chancellor on rotational basis;
- (vii)  
five outstanding teachers to be co-opted from outside the University representing different Faculties;
- (viii)  
seven heads of the Department to be nominated by the Vice-Chancellor;
- (ix)  
the Education Officer or his representative to be nominated by the North-Eastern Council set up under section 3 of the North-Eastern Council Act, 1971 (84 of 1971);
- (x)  
the Registrar of the University, ex officio Member-Secretary.

(2)  
The term of office of the members of the Academic Council other than ex officio members shall be two years.

(3)  
Subject to the Act, the Statutes and the Ordinances, the Academic Council shall, in addition to all other powers vested in it, have the following powers, namely:--

- (a)  
to exercise general supervision over the academic policies of the University and to give directions regarding methods of instructions, co-operative teaching among colleges and institutions, evaluation of research or improvements in academic standards;
- (b)  
to bring about inter-college coordination to establish or appoint committees or boards, for taking up projects on an inter-college basis;
- (c)  
to consider matters of general academic interest either on its own initiative or on a reference by a college or the Board and to take appropriate action thereon; and
- (d)  
to frame such regulations and rules consistent with the Statutes and the Ordinances regarding the academic functioning of the University, discipline, residences, admissions, award of fellowships and studentships, fees, concessions, corporate life and attendance.

15. Quorum for meetings of the Academic Council. Nine members of the Academic Council shall form a quorum for a meeting of the Academic Council.

16. Board of Studies. (1) Each Department shall have a Board of Studies.

(2)  
The constitution of a Board of Studies and the term of office of its members shall be provided by the Ordinances.

(3)  
The functions of a Board of Studies shall be to approve subjects for research for various degrees and other requirements of research degrees and to recommend to the concerned Board in the manner prescribed by the Ordinances--

(a)  
courses of studies and appointment of examiners for courses, but excluding research degrees;

(b)  
appointment of supervisors of research; and

(c)  
measures for the improvement of the standard of teaching and research:

Provided that the above functions of a Board of Studies shall, during the period of three years immediately after the commencement of the Act, be performed by the Department.

17. Finance Committee. (1) The Finance Committee shall consist of the following members, namely:--

(i)  
the Vice-Chancellor;

(ii)  
the Financial Adviser, Indian Council of Agricultural Research;

(iii)  
three persons to be nominated by the Board, out of whom at least one shall be a member of the Board;

(iv)  
three persons to be nominated by the Visitor; and

(v)  
the Comptroller of the University, Member-Secretary.

(2)  
Five members of the Finance Committee shall form a quorum for a meeting of the Finance Committee.

(3)  
The members of the Finance Committee, other than ex officio members, shall hold office for a term of three years.

(4)  
A member of the Finance Committee shall have the right to record a minute of dissent if he does not agree with any decision of the Finance Committee.

(5)  
The Finance Committee shall meet at least twice a year to examine the accounts and to scrutinise proposals for expenditure.

(6)  
Every proposal relating to creation of posts, and those items which have not been included in the Budget, should be examined by the Finance Committee before they are considered by the Board.

(7)  
The annual accounts and the financial estimates of the University prepared by the Comptroller shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Board for approval.

(8)  
The Finance Committee shall recommend limits for the total recurring expenditure and the total non-recurring expenditure for the year, based on the income and resources of the University (which, in the case of productive works, may include the proceeds of loans).

18. Selection Committees. (1) There shall be a Selection Committee for making recommendations to the Board for appointment to the posts of teachers, Comptroller, Registrar, Librarian, Deans of colleges, Directors and heads of other institutions maintained by the University.

(2)  
The Selection Committee for appointment to the posts specified in column 1 of the Table below shall consist of the Vice-Chancellor, Director Instruction, Director of Research, Director of Extension Education, a nominee of the Visitor and the persons specified in the corresponding entry in column 2 of the said Table:

TABLE

Professor

(i) The Head of the Department concerned if he is a Professor.

(ii) One Professor to be nominated by the Vice-Chancellor.

(iii) Three persons not in the service of the University, nominated by the Board, out of a panel of names recommended

by the Academic Council for their special knowledge of, or interest in, the subject with which the Professor will be concerned.

Associate Professor/Assistant Professor

(i) The Head of the Department concerned.

(ii) One Professor to be nominated by the Vice-Chancellor.

(iii) Two persons not in the service of the University, nominated by the Board, out of a panel of names recommended by the Academic Council for their special knowledge of, or interest in, the subject with which the Associate Professor/Assistant Professor will be concerned.

Registrar, Comptroller

(i) Two members of the Board nominated by it; and

(ii) One person not in the service of the University, nominated by the Board.

Librarian

Two persons not in the service of the University, who have special knowledge of the subject of the Library Science/Library Administration to be nominated by the Board.

Dean of college,

Three persons not in the service of Directors or head of the University of whom two shall be other institution nominated by the Board and one by the maintained by the University Academic Council for their special knowledge of, or interest in, a subject in which instruction is being provided by the college or institution.

NOTE: 1. Where the appointment is being made for an inter-disciplinary project, the head of the project shall be deemed to be the Head of the Department concerned.

NOTE: 2.. The Professor to be nominated shall be Professor concerned with the speciality for which the selection is being made and that the Vice-Chancellor shall consult the Head of the Department and the Dean of college before nominating the Professor,

(3)

The Vice-Chancellor, or in his absence, his nominee shall preside at the meetings of a Selection Committee:

Provided that the meetings of the Selection Committee shall be fixed after prior consultation with, and subject to the convenience of Visitor's nominee and the persons nominated by the Board under clause (2):

Provided further that the proceedings of the Selection Committee shall not be valid unless,--

(a)

where the number of Visitor's nominee and the persons nominated by the Board is four in all, at least three of them attend the meeting; and

(b)

where the number of Visitor's nominee and the persons nominated by the Board is three in all, at least two of them attend the meeting.

(4)

The meeting of a Selection Committee shall be convened by the Vice-Chancellor or in his absence by his nominee.

(5)

The procedure to be followed by a Selection Committee in making recommendations shall be laid down in the Ordinances.

(6)

If the Board is unable to accept the recommendations made by a Selection Committee, it shall record its reasons and submit the case to the Visitor for final orders.

(7)

Appointments to temporary posts shall be made in the manner indicated below:--

(i)

If the temporary vacancy is for a duration longer than one academic session, it shall be filled on the advice of the Selection Committee in accordance with the procedure indicated in the foregoing clauses:

Provided that if the Vice-Chancellor is satisfied that in the interests of work it is necessary to fill the vacancy, the appointment may be made on a purely temporary basis by a local Selection Committee referred to in sub-clause (ii) for a period not exceeding six months.

(ii)

If the temporary vacancy is for a period less than a year, an appointment to such vacancy shall be made on the recommendation of a local Selection Committee consisting of the Dean of the college concerned, the Head of the Department and a nominee of the Vice-Chancellor:

Provided that if the same person holds the offices of the Dean and the Head of the Department, the Selection Committee may contain two nominees of the Vice-Chancellor:

Provided further that in case sudden casual vacancies of teaching posts caused by death or any other reason, the Dean may, in consultation with the Head of the Department concerned, make a temporary appointment for a month and report to the Vice-Chancellor and the Registrar about such appointment.

(iii)

No teacher appointed temporarily shall, if he is not recommended by a regular Selection Committee for appointment under the Statutes, be continued in service on such temporary employment, unless he is subsequently selected by a local Selection Committee or a regular Selection Committee, for a temporary or permanent appointment, as the case may be.

19. Special mode of appointment. (1) Notwithstanding anything contained in Statute 18, the Board may invite a person of high academic distinction and professional attainments to accept a post of Professor or Associate Professor or any other academic post in the University, as the case may be, on such terms and conditions as it deems fit, and on the person agreeing to do so appoint him to the post.

(2)

The Board may appoint a teacher or any other academic staff working in any other University or organisation for undertaking a joint project in accordance with the manner laid down in the Ordinances.

20. Appointment for a fixed tenure. The Board may appoint a person selected in accordance with the procedure laid down in Statute 18 for a fixed tenure on such terms and conditions as it deems fit.

21. Recognised teachers. (1) The qualifications of recognised teachers shall be such as may be prescribed by the Ordinances.

(2)

All applications for the recognition of teachers shall be made in such manner as may be laid down in the Ordinances.

(3)

No teacher shall be recognised as a teacher except on the recommendation of a Selection Committee constituted for the purpose in the manner laid down in the Ordinances.

(4)

The period of recognition of a teacher shall be determined by the Ordinances made in that behalf.

(5)

The Academic Council may, by a special resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw recognition from a teacher:

Provided that no such resolution shall be passed until notice in writing has been given to the person concerned calling upon him to show cause, within such time as may be specified in the notice, why such resolution should not be passed and until his objections, if any, and any evidence he may produce in support of them have been considered by the Academic Council.

(6)

Any person aggrieved by an order of withdrawal under clause (5) may, within three months from the date of communication to him of such order, appeal to the Board which may pass such orders thereon as it thinks fit.

22. Committees. (1) The authorities of the University specified in section 16 may appoint as many standing or special committees as it may deem fit, and may appoint to such committees persons who are not members of such authority.

(2)

Any such committee appointed under clause (1) may deal with any subject delegated to it subject to confirmation by the authority appointing it.

23. Terms and conditions of service and code of conduct of the teachers, etc.. (1) All the teachers and other academic staff of the University shall, in the absence of any agreement to the contrary, be governed by the terms and conditions of service and code of conduct as are specified in the Statutes, the Ordinances and the Regulations.

(2)

Every teacher and member of the academic staff of the University shall be appointed on a written contract, the form of



which shall be prescribed by the Ordinances.

(3)

A copy of every contract referred to in clause (2) shall be deposited with the Registrar.

24. Terms and conditions of service and code of conduct of other employees. All the employees of the University, other than the teachers and other academic staff of the University, shall, in the absence of any contract to the contrary, be governed by the terms and conditions of service and code of conduct as are specified in the Statutes, the Ordinances and the Regulations.

25. Seniority list. (1) Whenever, in accordance with the Statutes, any person is to hold an office or be a member of an authority of the University by rotation according to seniority, such seniority shall be determined according to the length of continuous service of such person in his grade and, in accordance with such other principles as the Board may, from time to time, prescribe.

(2)

It shall be the duty of the Registrar to prepare and maintain, in respect of each class of persons to whom the provisions of these Statutes apply, a complete and up-to-date seniority list in accordance with the provisions of clause (1).

(3)

If two or more persons have equal length of continuous service in a particular grade or the relative seniority of any person or persons is otherwise in doubt, the Registrar may, on his own motion and shall, at the request of any such person, submit the matter to the Board whose decision thereon shall be final.

26. Removal of employees of the University. (1) Where there is an allegation of misconduct against a teacher, a member of the academic staff or other employee of the University, the Vice-Chancellor, in the case of the teacher or member of the academic staff, and the authority competent to appoint (hereinafter referred to as the appointing authority) in the case of other employee, may, by order in writing, place such teacher, member of the academic staff or other employee, as the case may be, under suspension and shall forthwith report to the Board the circumstances in which the order was made:

Provided that the Board may, if it is of the opinion, that the circumstances of the case do not warrant the suspension of the teacher or a member of the academic staff, revoke such order.

(2)

Notwithstanding anything contained in the terms of the contract of appointment or of any other terms and conditions of service of the employees, the Board in respect of teachers and other academic staff, and the appointing authority, in respect of other employees, shall have the power to remove a teacher or a member of the academic staff, or as the case may be, other employees on grounds of misconduct.

(3)

Save as aforesaid, the Board, or as the case may be, the appointing authority, shall not be entitled to remove any teacher, member of the academic staff or other employee except for a good cause and after giving three months' notice or on payment of three months' salary in lieu thereof.

(4)

No teacher, member of the academic staff or other employee shall be removed under clause (2) or clause (3) unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(5)

The removal of a teacher, member of the academic staff or other employee shall take effect from the date on which the order of removal is made:

Provided that where the teacher, member of the academic staff or other employee is under suspension at the time of his removal, such removal shall take effect from the date on which he was placed under suspension.

(6)

Notwithstanding anything contained in the foregoing provisions of this Statute, a teacher, member of the academic staff or other employee may resign,--

(a)

if he is a permanent employee, only after giving three months' notice in writing to the Board or the appointing authority, as the case may be, or by paying three months' salary in lieu thereof;

(b)

if he is not a permanent employee, only after giving one month's notice in writing to the Board or, as the case may be,

the appointing authority or by paying one month's salary in lieu thereof:

Provided that such resignation shall take effect only on the date on which the resignation is accepted by the Board or the appointing authority, as the case may be.

27. Honorary degrees. (1) The Board may, on the recommendation of the Academic Council and by a resolution passed by a majority of not less than two-thirds of the members present and voting, make proposals to the Visitor for the conferment of honorary degrees:

Provided that in case of emergency, the Board may, on its own motion, make such proposals.

(2)

The Board may, by a resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw, with the previous sanction of the Visitor, any honorary degree conferred by the University.

28. Withdrawal of degrees, etc.. The Board may, by a special resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw any degree or academic distinction conferred on, or any certificate or diploma granted to, any person by the University for good and sufficient cause:

Provided that no such resolution shall be passed until a notice in writing has been given to that person calling upon him to show cause within such time as may be specified in the notice why such a resolution should not be passed and until his objections, if any, and any evidence he may produce in support of them, have been considered by the Board.

29. Maintenance of discipline among students of the University. (1) All powers relating to discipline and disciplinary action in relation to students of the University shall vest in the Vice-Chancellor.

(2)

The Vice-Chancellor may delegate all or any of his powers as he deems proper to such officers as he may specify in this behalf.

(3)

Without prejudice to the generality of his powers relating to the maintenance of discipline and taking such action, as may seem to him appropriate for the maintenance of discipline, the Vice-Chancellor may, in exercise of his powers, by order, direct that any student or students be expelled, or rusticated, for a specified period, or be not admitted to a course or courses of study in a college, institution or Department of the University for a stated period, or be punished with fine for an amount to be specified in the order, or be debarred from taking an examination or examinations conducted by the University, college, institution or Department for one or more years, or that the results of the student or students concerned in the examination or examinations in which he or they have appeared be cancelled.

(4)

The Deans of colleges, institutions and Heads of teaching departments in the University shall have the authority to exercise all such disciplinary powers over the students in their respective colleges, institutions and teaching Departments in the University as may be necessary for the proper conduct of such colleges, institutions and teaching in the Departments.

(5)

Without prejudice to the powers of the Vice-Chancellor, the Deans and other persons specified in clause (4), detailed rules of discipline and proper conduct shall be made by the University. The Deans of colleges, institutions and Heads of teaching Departments in the University may also make the supplementary rules as they deem necessary for the aforesaid purposes.

(6)

At the time of admission, every student shall be required to sign a declaration to the effect that he submits himself to the disciplinary jurisdiction of the Vice-Chancellor and other authorities of the University.

30. Maintenance of discipline among students of colleges, etc.. All powers relating to discipline and disciplinary action in relation to students of a college or an institution maintained by the University, shall vest in the Dean of the college or institution, as the case may be, in accordance with the procedure prescribed by the Ordinances.

31. Advisory Committee. Every college or institution maintained by the University shall have an Advisory Committee consisting of not more than fifteen persons which shall consist of, among others, three teachers including the Dean of the college or institution, and two teachers of the University nominated by the Board.

32. Convocations. Convocations of the University for the conferring of degrees or for other purposes shall be held in such manner as may be prescribed by the Ordinances.

33. Acting Chairman. When no provision is made for a Chairman to preside over a meeting of any authority of the

University or any committee of such authority or when the Chairman so provided for is absent, the members present shall elect one from among themselves to preside at such meeting.

34. Resignation. Any member, other than an ex officio member of the Board, Academic Council or any other authority of the University or any committees of such authority may resign by letter addressed to the Registrar and the resignation shall take effect as soon as such letter is received by the Registrar.

35. Disqualifications. (1) A person shall be disqualified for being chosen as, and for being, a member of any of the authorities of the University,--

(i)

if he is of unsound mind;

(ii)

if he is an undischarged insolvent;

(iii)

if he has been convicted by a court of law of an offence involving moral turpitude and sentenced in respect thereof to imprisonment for a period of not less than six months.

(2)

If any question arises as to whether a person is or had been subjected to any of the disqualifications mentioned in clause (1), the question shall be referred to the Visitor and his decision thereon shall be final and no suit or other proceeding shall lie in any civil court against such decision.

36. Residence condition for membership and office. Notwithstanding anything contained in the Statutes, a person who is not ordinarily resident in India shall be eligible to be an officer of the University or a member of any authority of the University.

37. Membership of authorities by virtue of membership of other bodies. Notwithstanding anything contained in the Statutes, a person who holds any post in the University or is a member of any authority of the University in his capacity as a member of a particular authority or as the holder of a particular appointment shall hold such office or membership only for so long as he continues to be a member of that particular authority or the holder of that particular appointment, as the case may be.

38. Alumni Association. (1) There shall be an Alumni Association for the University.

(2)

The subscription for membership of the Alumni Association shall be prescribed by the Ordinances.

(3)

No member of the Alumni Association shall be entitled to vote for stand for election unless he has been a member of the Association for at least one year prior to the date of the election and is a degree holder of the University of at least five years standing:

Provided that the condition relating to the completion of one year's membership shall not apply in the case of the first election.

39. Students' Council. (1) There shall be constituted in the University, a students, Council for every academic year, consisting of--

(i)

the Director Instruction who shall be the Chairman of the Students, Council;

(ii)

all students who have won prizes in the previous academic year in the fields of studies, fine arts, sports and extension work;

(iii)

twenty students to be nominated by the Academic Council on the basis of merit in studies, sports, activities and all-round development of personality:

Provided that any student of the University shall have the right to bring up any matter concerning the University before the Students' Council if so permitted by the Chairman, and he shall have the right to participate in the discussions at any meeting when the matter is taken up for consideration.

(2)

The functions of the Students' Council shall be to make suggestions to the appropriate authorities of the University in regard to the programmes of studies, students welfare and other matters of importance in regard to the working of the

University in general and such suggestions shall be made on the basis of consensus of opinion.

(3)

The Students' Council shall meet at least once in an academic year preferably in the beginning of that year.

40. Ordinances how made. (1) The first Ordinances made under sub-section (2) of section 27 may be amended or repealed at any time by the Board in the manner specified below.

(2)

No Ordinance in respect of the matters enumerated in section 27, other than those enumerated in clause (n) of sub-section (1) thereof, shall be made by the Board unless a draft of such Ordinance has been proposed by the Academic Council.

(3)

The Board shall not have power to amend any draft of any Ordinance proposed by the Academic Council under clause (2) but may reject the proposal or return the draft to the Academic Council for reconsideration, either in whole or in part, together with any amendment which the Board may suggest.

(4)

Where the Board has rejected or returned the draft of an Ordinance proposed by the Academic Council, the Academic Council may consider the question afresh and in case the original draft is reaffirmed by a majority of not less than two-thirds of the members present and voting and more than half the total number of members of the Academic Council, the draft may be sent back to the Board which shall either adopt it or refer it to the Visitor whose decision shall be final.

(5)

Every Ordinance made by the Board shall come into effect immediately.

(6)

Every Ordinance made by the Board shall be submitted to the Visitor within two weeks from the date of its adoption. The Visitor shall have the power to direct the University within four weeks of the receipt of the Ordinance to suspend the operation of any such Ordinance and he shall, as soon as possible, inform the Board about his objection to the proposed Ordinance. The Visitor may, after receiving the comments of the University, either withdraw the order suspending the Ordinance or disallow the Ordinance, and his decision shall be final.

41. Regulations. (1) The authorities of the University may make Regulations consistent with the Act, the Statutes and the Ordinances for the following matters, namely:--

(i)

laying down the procedure to be observed at their meetings and the number of members required to form a quorum;

(ii)

providing for all matters which are required by the Act, the Statutes or the Ordinances to be prescribed by Regulations;

(iii)

providing for all other matters concerning such authorities or committees appointed by them and not provided for by the Act, the Statutes or the Ordinances.

(2)

Every authority of the University shall make Regulations providing for the giving of notice to the members of such authority of the dates of meeting and of the business to be considered at meetings and for the keeping of a record of the proceedings of meetings.

(3)

The Board may direct the amendment in such manner as it may specify, of any Regulation made under the Statutes or the annulment of any such Regulation.

42. Delegation of powers. Subject to the provisions of the Act and the Statutes, any officer or authority of the University may delegate his or its powers to any other officer or authority or person under his or its respective control and subject to the condition that overall responsibility for the exercise of the powers so delegated shall continue to vest in the officer or authority delegating such powers.

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